

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING SECTION 1.16.050, OFF-SITE IMPROVEMENTS—REQUIREMENTS, OF CHAPTER 1.16, ANNEXATION AND INFRASTRUCTURE IMPROVEMENTS, OF TITLE 1, GENERAL PROVISIONS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 1.16.050, Off-site improvements—Requirements, of Chapter 1.16, Annexation and Infrastructure Improvements, of Title 1, General Provisions, of the Code of the City of Cheyenne, Wyoming, are hereby amended as set out in this ordinance.

1.16.050 Off-site improvements—Requirements.

In the event that off-site improvements, which are the subject of Section 1.16.040 of this chapter, have not been installed at the time that the development action is submitted to the city then before any certificate of occupancy will be issued for any buildings constructed within the subdivision area, the required sewer and water mains must be released for service by the board of public utilities and permanent service lines must be installed, the overlot grading completed to assure proper drainage, and one of the following requirements (either subsection A or B of this section) must be met in its entirety:

A. Signed Contract and Bond.

1. A signed contract, satisfactory to the city engineer for substantive sufficiency for the project, between the developer and a qualified contractor for the installation of each noncompleted off-site improvement;
2. A performance bond by the contractor or developer satisfactory to the city engineer of the qualification and capacity of the contractor to complete the job in accordance with the terms and provisions of the construction contract;
3. The contract(s) required by this section for the installation of the off-site improvements will specify completion dates to be approved by the city engineer in order to guarantee regular and reasonable occupancy time for residence of structures to be completed in the area and the building requirements as determined by weather conditions.

B. Cash Deposit or Letter of Credit. A cash deposit or letter of credit satisfactory to the city engineer in an amount not less than one hundred fifty (150) percent of the contract price relative to the installation costs for infrastructure improvements. All construction contracts, letters of credit, payment assurances and deposits must cover an area of not less than one lineal block encompassing the street where the

certificate of occupancy is required with sufficient curb, gutter, sidewalk, paving and other facilities to meet the requirements.

- 1. Upon receipt of a cash deposit pursuant to this section, the city treasurer shall deposit such funds into an account designated for the sole purpose of constructing the off-site infrastructure improvements for which the cash deposit was made.**
 - 2. If upon the conclusion of the tenth fiscal year after the fiscal year in which the cash deposit was made, the off-site infrastructure improvements for which the cash deposit was made have not been constructed, then the person or persons making such cash deposit or such other person as is legally entitled thereto, may request a refund of the cash deposit, plus interest earned thereon, such refund request not to be unreasonably denied. After passage of this ordinance, cash deposits presently held by the city treasurer that meet the requirements described herein, shall be eligible for refund beginning on the effective date of this ordinance.**
 - 3. If such refund is paid and the recipient is then the current record property owner, the city engineer shall record a “Notice of Potential Infrastructure Improvement Reimbursement” with the Laramie County real estate office on the property affected by the refund request. Such person shall not be relieved from the responsibility for the cost of the infrastructure improvements in the amount deposited with the City, consistent with this Chapter. Copies of the same shall be delivered to the affected property owner(s) and the planning and development department.**
 - 4. If such refund is paid and the recipient is no longer the current record property owner, such person or persons shall not be relieved from the responsibility for the cost of the infrastructure improvements in the amount deposited with the City, consistent with this Chapter.**
 - 5. If the person or persons having made such cash deposit or such other person as is legally entitled thereto has not requested a refund more than one year after such funds became eligible for refund, the city will proceed in accordance with the provisions of the Wyoming Uniform Unclaimed Property Act, Wyo. Stat. Section 34-24-101 *et seq.***
- C. In addition to either subsection A or B of this section, any off-site improvements not directly attributable to any specific location within the development shall be included in the letter of credit, cash deposit or performance bond for the first phase of development construction.

Section 2. That this ordinance shall be in full force and effect upon its approval,

publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

Marian J. Orr, Mayor

(SEAL)

Attest:

Carol Intlekofer, City Clerk

Publish: Wyoming Tribune Eagle